STANDARD OPERATING PROCEDURE	G-1400

	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **05/15/15**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		

CHAPTER TITLE GENERAL	RESOURCES 1964 CIVIL RIGHTS ACT, TITLE VII
SUBJECT HARASSMENT	CROSS REFERENCE G-2100 COMPLAINT PROCEDURE

I. Purpose:

The purpose of this policy is to provide a definition of harassment and to establish procedures to prevent and report allegations of discrimination and unlawful harassment. (Unlawful harassment shall hereinafter be referred to as "harassment.")

II. Policy:

The Sarpy County Sheriff's Office seeks to provide a professional work environment at all times. Discrimination and harassment negatively affect morale, motivation, job performance, and are damaging to the work environment and the community. Discrimination and harassment are also illegal under Title VII of the 1964 Civil Rights Act. Any discrimination or harassment of employees, vendors, inmates or the public based on race, color, religion, sex, national origin, pregnancy/child birth, marital status, sexual orientation, disability, genetic information, political activity or any other legally protected class by employees of the Sheriff's Office is strictly prohibited. Appropriate action, which may include discipline, shall be taken whenever any employee discriminates or harasses another person. Additionally, appropriate action, which may include discipline, shall be taken whenever any supervisor allows discrimination or harassment to occur when the supervisor knows or should have known about the harassment.

It is also illegal to terminate, demote, harass or otherwise retaliate against employees because he or she has complained to a supervisor about discrimination or harassment, filed a charge of discrimination or harassment or participated in an employment discrimination or harassment proceeding.

Any employee who believes that he or she has been the victim of discrimination or harassment, or any individual who has witnessed or has knowledge of an incident of discrimination or harassment is encouraged to report that information.

Sheriff's Office employees will make an effort to stop discrimination or harassment as soon they are made aware of the situation.

III. Definitions:

A. EMPLOYEE: All personnel employed by the Sheriff's Office, both sworn and non-sworn.

B. INMATE: Any person in the custody of the Sheriff's Office.

C. Non-Employee: Any person other than an "employee" or "inmate" e.g., visitor, vendor or the general public, etc.

D. Supervisor: An individual who has the authority and responsibility to undertake or recommend tangible employment decisions affecting employees or has the authority to direct daily work activities.

E. Discrimination or Harassment: This includes discrimination or harassment against any individual with respect to compensation, terms, conditions or privileges of employment or to limit, segregate, or classify employees or applicants or employment in any way which would deprive any individual of employment opportunities or otherwise adversely affects employment status based on race, color, religion, sex, national origin, pregnancy/child birth, marital status, disability, genetic information and/or political activity.
Examples of behaviors that should be avoided that meet the definition of discrimination or harassment include:

1. Use of epithets.
2. Deliberate or repeated jokes, remarks, stories, gestures or innuendoes which may be considered offensive.
3. Display or circulation of printed material or pictures which are considered derogatory or offensive in nature.
4. Obscene and/or harassing phone calls, text messages, emails, letters, blogs or other forms of communication.

F. SEXUAL HARASSMENT: Unwelcomed sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature constitute sexual harassment when this conduct affects an individual's employment, reasonably interferes with an individual's work performance, or creates an intimidating, hostile, or offensive work environment where:

1. Submission to such conduct is made, either explicitly or implicitly, a term or condition of an individual's employment;

2. Submission to or rejection of such conduct is used as the basis for employment decisions affecting such individual;

3. Submission to such conduct is the basis for granting inmate rights and privileges; or

4. Such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive working environment.

5. Sexual harassment can occur in a variety of circumstances, including but not limited to the following:

a) The individual as well as the harasser may be a male or female. The individual does not have to be of the opposite sex.
b) The harasser can be the victim's coworker, supervisor, a supervisor of another area/department, or a non-employee.
c) The individual does not have to be the person harassed but could be anyone (e.g., coworker, bystander) affected by the offensive conduct.
d) Unlawful sexual harassment may occur without economic injury to or discharge of the person targeted.
e) The harasser's conduct must be unwelcome.

G. TYPES of SEXUAL HARASSMENT:

1. Quid Pro Quo "this for that": Behavior that involves express or implied demands for sexual favors in exchange for some benefit such as a promotion, raise, recommendation or to avoid some detriment in the workplace such as termination, demotion, etc. Quid Pro Quo harassment may be as undisguised as a direct solicitation or it may take the form of more subtle sexual propositions or even a simple dating invitation.

2. Verbal Sexual Harassment Examples:

a) Making an explicit sexual proposition that is unwelcome.
b) Pressure to accept social invitations, to meet privately, to date, or to have sexual relations.
c) Graphic or sexually suggestive comments about an individual's attire, body, or appearance.
d) Inquiries or having discussions about an employee's sexual activities.

e) Telling offensive jokes, teasing or having conversations with sexual overtones or turning casual comments into sexual innuendoes.

f) Sexual slurs, demeaning epithets, derogatory statements, or other verbal abuse.

g) Suggestive, obscene, or harassing phone calls or voice messages.

3. Non-Verbal Sexual Harassment Examples:

a) Leering, making facial expressions such as winking, whistling, or licking lips.

b) Distributing, posting, or displaying pin-up calendars, or sexually explicit pictures, cartoons, or objects, with or without sexually explicit wording or comments.

c) Making sexual gestures with hands or body movements or sounds.

d) Providing unwanted gifts or materials that may be of a sexual nature.

e) Sending obscene or sexually explicit emails, letters, notes, text messages, or other forms of written or electronic communication.

4. Physical Sexual Harassment Examples:

(1) Unwanted or unnecessary physical contact, sexual touching, brushing up against another in a sexual manner, graphic or sexually suggestive gestures, massaging, cornering, pinching, grabbing, kissing, or fondling.

(2) Committing or attempting to commit a rape, sexual assault, battery or molestation

H. **Hostile Work Environment:** Unwelcome, severe, or pervasive harassment sufficient to alter the conditions of employment and create a hostile environment in which to work. This definition goes beyond casual, infrequent, or isolated instances. The individual alleging a hostile work environment must show a pattern or practice of harassment, as a single or isolated incident generally will not be sufficient. In determining whether a reasonable person in these circumstances would find the work environment to be hostile, the totality of the circumstances must be considered. For a hostile work environment to be considered illegal under federal law it must meet the definition as described under Title VII of the 1964 Civil Rights Act. This should not discourage employee(s) from reporting incidents they feel may be harassing but not meet this standard.

I. **Inappropriate Conduct:** Not all inappropriate conduct in the workplace meets the definition of discrimination and/or harassment. Other forms of inappropriate conduct in the workplace, although not a direct violation of this policy may still be addressed through a line investigation or performance memo (see G-1200 Standards of Conduct: Conduct Unbecoming and G-5830 Performance Memorandum).

IV. Procedures:

A. **Employee Responsibilities:** Any employee who believes that he or she is the subject of discrimination, harassment, or inappropriate conduct may:

a) Point out the offensive behavior to the individual responsible for the behavior and request that the behavior stop.

b) Employees are not obligated to approach the responsible individual and may choose to file a formal complaint or report the behavior to a supervisor.

c) Employee Reporting Discrimination, Harassment or Inappropriate Conduct:

(1) If an employee chooses not to approach the individual responsible for the behavior or the employee's request to stop the offensive behavior has been ignored, the employee may notify any or all of the following as soon as possible:

(a) The employee's immediate supervisor.
(b) The supervisor of the individual responsible for the harassment.
(c) Any command officer.
(d) The Chief Deputy.
(e) The Sheriff.

(2) In cases of discrimination or harassment the employee may also file a complaint of work place harassment with the Nebraska Equal Opportunity Commission and/or the Federal Equal Opportunity Commission.

(a) Due to filing period restrictions, it is recommended that an employee who wishes to file with either agency do so as soon as possible.

(b) An employee need not file a complaint with either agency to have a formal complaint investigated by the Sheriff's Office.

2. Witness Responsibilities:

a) If employees observe discrimination and/or harassment they are encouraged to notify any or all of the following as soon as possible:

(1) The employee's immediate supervisor
(2) The supervisor of the individual responsible for the behavior
(3) Any command officer
(4) The Chief Deputy
(5) The Sheriff
(6) The Human Resources Department

3. Supervisor Responsibilities:

a) Personnel in any supervisory position learning of an incident of discrimination or harassment shall:

(1) Notify his or her division commander.

(2) Begin an investigation into the incident and determine if it may be handled by the supervisor or is best handled by filing an internal complaint. The internal complaint procedure following established guidelines (see G-2100 Complaint Procedure).

(3) Inform an administrative commander.

b) Any failure by a supervisor to report an incident of discrimination or harassment shall be considered to be in violation of this policy and shall subject the supervisor to disciplinary action.

4. Discrimination or Harassment Investigation: All harassment complaints shall be promptly and thoroughly investigated following established guidelines (see G-2100 Complaint Procedure).

a) The identities of the complainant or complainants and of the accused party or parties shall remain confidential when possible.

b) If a violation of this policy was determined to have occurred as a result of an investigation, steps shall be implemented to immediately stop the behavior if it is still continuing.

c) The supervisor shall determine if he/she believes there was a violation and whether or not to recommend discipline.

5. **Prohibition Against Retaliation:** It shall be considered a separate violation of this policy to coerce, intimidate, retaliate or interfere with an individual wishing to file a complaint or assist in an investigation.

V. False or Malicious Accusations

A. It is a violation of this policy for anyone to knowingly or with reckless disregard for the truth to make false accusations of discrimination or harassment.

B. Failure to prove a claim of discrimination or harassment is not equivalent to a false allegation.

C. An employee whose allegations are found to be false and brought with malicious intent will be subject to disciplinary action.